**THE NATIONAL COMPANY LAW TRIBUNAL**
**BENCH V, AT NEW DELHI**

**CP (CAA) 6/230/232/ND/2022**

Under Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

**IN THE MATTER OF:**

**SCHEME OF AMALGAMATION**

**OF**

**TORQUES SYSTEMS PRIVATE LIMITED**

**...(Transferor Company/ Applicant No 1)**

**WITH**

**TIMES INTERNET LIMITED**

**...(Transferee Company/ Applicant No 2)**

**Order Reserved On: 18.01.2022**
**Order Pronounced On: 25.01.2022**

**CORAM:**

**SH. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER(J)**

**SH. AVINASH K. SRIVASTAVA, HON'BLE MEMBER (T)**

**PRESENT**

**For the Applicant** : Mr. Abhishek Seth, Adv., Ms. Deviika Chopra, Adv., Mr. Shaurya Sharma, Adv.

**For the Respondent** : Ms. Hemlata Rawat, for the OL

**MEMO Of PARTIES**

**In the Matter of Companies Act, 2013**
**Section 230 to 232**

**AND**

**In the Matter of:**

**TORQUS SYSTEMS PRIVATE LIMITED**

Company incorporated under the Companies Act, 1956
Having Registered Office at Express Building
9-10, Bahadurshah Zafar Marg, New Delhi
New Delhi-110002
CIN: **U72900DL2014PTC358928**

**(Transferor Company/ Applicant No 1)**

**AND**

**TIMES INTERNET LIMITED**

Company incorporated under the Companies Act, 1956
Having its registered office at Express Building
9-10, Bahadurshah Zafar Marg,
New Delhi 110002
CIN: **U74999DL1999PLC135531**

**(Transferee Company / Applicant No 2)**

**O R D E R**

**PER SH. AVINASH K. SRIVASTAVA, MEMBER (TECHNICAL)**

1. This Company Petition jointly filed by the Applicant Companies is coming before us for admission, fixing a date for hearing and final disposal of the Application as well as for a direction for publication and issuance of notices to the concerned authorities for objections, if

any, to the Composite Scheme of Arrangement (hereinafter, referred to as the "SCHEME") contemplated between the Applicants, which will take effect from the Appointed Date of 01 April, 2020.

**2.** As per the averments, the Registered offices of both the Applicant Companies are located in Delhi and hence, falling within the territorial jurisdiction of this Bench.

**3.** From the case records, it is seen that the First Motion seeking direction for dispensing with the meeting of Equity Shareholders, Secured Creditors and Unsecured Creditors was filed before this Tribunal in **CA (CAA)-13/ND/ 2021** under sections 230-232 of the Companies Act, 2013 and vide order dated **03.01.2022 Annexure P-7** directions were issued to dispense with the convening and holding of the meetings of Equity Shareholders, Secured Creditors and Unsecured Creditors of the Applicant Companies.

**4.** The prayers in this Petition by way of Second Motion are for fixing a date of hearing as well as other consequential directions in terms of the provisions of the Section 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016. It is now hereby ordered as follows:

i. **The Petition stands Admitted.**

ii. The date of hearing of the Petition led by the Applicant Companies for approval of the Scheme is fixed for 25.03.2022

iii. Notice of the hearing shall be published in the newspapers namely, Business Standard" in English and "Business Standard" in Hindi (Delhi edition) in not less than 40 days before aforesaid date fixed for hearing.

**5.** In addition to the publication of the above Public Notice, the Applicant Companies shall individually serve the notices of this Petition to the following Authorities, namely:

**(A)** Central Government through Regional Director (Northern region), Ministry of Corporate Affairs,

**(B)** Ministry of Corporate Affairs, (Official Liquidator, Delhi,

**(C)** Registrar of Companies, NCT of Delhi & Haryana,

**(D)** The Jurisdictional Income Tax Authorities,

**(E)** SEBI, Plot No. C4-A, 'G' Block, Bandra-Kurla Complex, Bandra (East), Mumbai-400051, Maharashtra

**(F)** Bombay Stock Exchange, Phiroze Jeejeebhoy Towers, Dalal Street, Mumbai-400001

**(G)** National Stock Exchange, 4th Floor, Jeevan Vihar Building, Parliament Street, New Delhi-110001

**(H)** Such other Sectoral Regulatory Authorities, which govern working of the Companies involved in the Scheme

at least 40 days before the date fixed for hearing of this Petition.

**6.** That the Applicant Companies shall, at least 7 days before the date of hearing of the Petition, file an Affidavit of Service in relation to the Newspaper publication effected as well as service of Notices on the Authorities as specified above including the Sectoral Regulators, if any.

**7.** Objections, if any, by the Authorities to whom Notices are given on or before the date of hearing fixed herein may be filed to the "SCHEME" contemplated by the Applicant Companies, failing which it. will be considered by this Tribunal that there is no objection to approval of the "SCHEME" on the part of the Authorities, subject to other conditions as may be applicable under the Companies Act, 2013 and relevant rules framed there under being satisfied.

-Sd-

25/1/2022

**AVINASH K. SRIVASTAVA**
**MEMBER (TECHNICAL)**

-Sd-

**ABNI RANJAN KUMAR SINHA**
**MEMBER(JUDICIAL)**